

25NNCP00295 25NNCP00295

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-26

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Case Number: 25NNCP00295 Hearing Date: June 26, 2026 Dept: A

MOTION TO AMEND JUDGMENT

Los

Angeles Superior Court Case # 25NNCP00295

MP: Petitioner Ana Garcia (a self-represented litigant)

RP: No opposition received (This action was for a name change.)

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS AND RELEVANT

BACKGROUND:

On April

15, 2025, Ana Garcia ("Petitioner") filed a Petition for Name Change, seeking to change her name to "Pie Ana Marie Lombardi."

On June

13, 2025, the Court granted the Petition, changing Petitioner's name to "Pie Ana Marie Lombardi." The Court signed the Decree Changing Name this date.

MOTION

ON CALENDAR:

On March

19, 2026, Petitioner Ana Garcia aka Pie Ana Marie Blanco Lombardi filed a Motion to Amend Decree Changing Name.

LEGAL

STANDARD:

C.C.P. §

1276(a) states:

(a)(1)

All applications for change of names shall be made to the superior court of the county where the person whose name is proposed to be changed resides, except as specified in subdivision (e) or (g), either (A) by petition signed by the person or, if the person is under 18 years of age, by one of the person's parents, by any guardian of the person, or as specified in subdivision (e), or, if both parents are deceased and there is no guardian of the person, then by some near relative or friend of the person, or (B) as provided in Section 7638 of the Family Code.

(2)

The petition or pleading shall specify the place of birth and residence of the person, the person's present name, the name proposed, and the reason for the change of name.

(C.C.P. §

1276(a).) Section 1277 provides the procedural posting requirement to circulate the proposed name change. If no objections are filed at least two days before the petition hearing date, the Court may, without hearing, enter the

order that the change of name is granted.

(C.C.P. § 1278(a).)

C.C.P. § 128(a)(8)

states that the Court has the power to “amend and control its process and orders so as to make them conform to law and justice.”

ANALYSIS:

Petitioner

moves for an order amending the June 13, 2025 Decree Changing Name to: (1) include her date of birth (March 28, 1939) and place of birth (Manhattan, New York) as identifying information; (2) clarify her present name as “Ana Garcia aka Pie Ana Marie Blanco Lombardi”; (3) correct and confirm that the decreed new legal name is “Pie Ana Marie Lombardi”; and (4) enter the amendment nunc pro tunc to June 13, 2025 so that amended decree may be accepted by the New York City Department of Health and Mental Hygiene (“NYC DHMH”) for amendment of Petitioner's birth record and federal and state identification authorities. Petitioner seeks these changes so that the NYC DHMH can amend her birth certificate and she can obtain a U.S. Passport and Real ID.

Petitioner

argues that the Court has authority to order name changes pursuant to C.C.P. §§ 1275-1279.6 and correct clerical omissions/mistakes in their orders nunc pro tunc pursuant to C.C.P. § 128(a).

First,

the Court grants Petitioner's request amend the order to include Petitioner's date and place of birth, as these matters were listed in her Petition and are consistent.

Second,

Petitioner requests that the Court clarify that her “present name” be listed as “Ana Garcia aka Pie Ana Marie Blanco Lombardi.” The Petition listed her name as “Ana Garcia” only

Third,

Petitioner requests that her final name be corrected so that it is not spelled “Lombari” (without the “d”) and instead should be “Lombardi.” However, based on the Court's review of its

June 13, 2025 Minute Order, the Court granted the Petition stating: "The party's name is changed from Ana Garcia to PIE ANA MARIE LOMBARDI." Similarly, the Decree Changing Name states: "The name of [Present name] a. Ana Garcia is changed to [New name] Pie Ana Marie Lombardi." Thus, no correction needs to be made with respect to the last name as it was correctly spelled in the Minute Order and the Decree. Thus, this request is moot.

The Court will enter the order nunc pro tunc with respect to adding Petitioner's date and place of birth to the June 13, 2025 order.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Petitioner

Ana Garcia's Motion to Amend the Judgment came on regularly for hearing on June 26, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

Motion to AMEND THE JUDGMENT IS GRANTED IN PART SUCH THAT THE COURT WILL AMEND THE JUDGMENT TO INCLUDE PETITIONER'S DATE AND PLACE OF BIRTH (MARCH 28, 1939 IN MANHATTAN, NEW YORK) TO THE JUNE 13, 2025 ORDER. THE MOTION IS GRANTED AS TO THE REQUEST TO CLAIRFY HER "PRESENT NAME" CURRENTLY LISTED AS "ANA GARCIA" TO "ANA GARCIA AKA PIE ANA MARIE BLANCO LOMBARDI."

THE

MOTION IS DENIED IN PART AS MOOT WITH RESPECT TO THE REQUEST TO CORRECT HER "FINAL NAME" FROM "LOMBARI" TO "LOMBARDI" AS THE JUDGMENT AND JUNE 13, 2025

MINUTE ORDER REFLECT THAT HER FINAL NAME WAS CORRECTLY SPELLED AS "LOMBARDI."

IT IS SO
ORDERED.